

23STCV11406 23STCV11406

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 23STCV11406 Hearing Date: August 28, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 28, 2026

Case Name: Dechter v. Massman, et al.

Case No.: 23STCV11406

Matter: Motions to Compel Further Responses (2x)

Moving Party: Plaintiff Bradley J. Dechter

Responding Party: Defendants Ronald Massman and DHX—Dependable Hawaiian Express,

Inc.

Notice: OK

Ruling: The Motions are granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On May 19, 2023, Plaintiff Bradley J. Dechter filed a Complaint. On October 9, 2023, Plaintiff filed the operative First Amended Complaint ("FAC") against Defendants Ronald Massman and DHX—Dependable Hawaiian Express, Inc. ("DHX") for (1) breach of oral contract, (2) breach of oral contract, (3) fraud, and (4) unjust enrichment. Plaintiff alleges that he is entitled to an interest in DHX due to his contributions, but that his ownership interest has been refused.

Plaintiff now seeks to compel further responses to its requests for production (RFPs) from Defendants.

Responses indicating nonexistence

The Motion is granted as to the many responses in which Defendants indicated that no documents exist. First, the objections lack merit. Second, a response should be provided as though the "acquisition" refers to the asset purchase. The objection to this phrasing is evasive.

Co-owned entities term

The Motion is granted as to RFP nos. 15, 16, 19. The objection to the term "co-owned entities" lacks merit. A response should be provided based on Defendants' best understanding of the term. If the parties had met and conferred, a reasonable definition could also have been agreed upon.

Financial Records, Corporate Minutes, etc.

The Court temporally narrows these financial and corporate documents to 2018 through 2022. Querying an existing general ledger database to extract standard monthly/quarterly financial statements or comparative reports constitutes translating ESI into a "reasonably usable form" pursuant to CCP § 2031.280(d)–(e), not creating new documents (*Person v. Farmers Ins. Group of Cos.* (1997) 52 Cal.App.4th 813, 818). Defendants conceded they hold a database capable of generating these standard statements.

Lease related RFPs

Plaintiff's allegations regarding below-market or artificially controlled lease rates directly implicate breach of fiduciary duty and financial management theories. Historical lease terms, actual payment ledgers, and internal communications regarding property leases are directly relevant to establishing baseline obligations, rent allocation methods between entities, and corporate governance practices over time.

Requests seeking lease documents and payment records dating back to 2013 or 2019 are reasonably tailored to show multi-year financial arrangements, corporate inter-entity transfers, and baseline metrics before and after key corporate transactions (*West Pico Furniture Co. v. Super. Ct.* (1961) 56 Cal.2d 407, 417).

Defendants' proposed compromise—limiting production to post-lease-term general ledger excerpts and communications—unreasonably restricts discovery to a self-selected evidentiary subset. Plaintiff is entitled to inspect the underlying lease agreements, payment records, and non-privileged communications within Defendants' possession, custody, or control.

Privilege Log & Protective Order

If a privilege is asserted, then a privilege log must be provided. Confidentiality concerns can be addressed via the Court's model protective order.

In sum, the Motions are granted in part. Further responses without objections are to be provided within 20 days. Financial and corporate documents are temporally narrowed to 2018 through 2022. Lease documents must be provided from 2013/2019 until the present.

Moving party to give notice.